NON-DISCLOSURE AGREEMENT

# *Non-Disclosure Agreement*

ON SPOT SOLUTIONS LLC

*and*

ACME WIDGETS INC

PREPARED 24 APRIL 2026

FOR ACME WIDGETS INC

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*This Non-Disclosure Agreement ("Agreement") is entered into on April 24, 2026, between On Spot Solutions LLC, a Massachusetts limited liability company ("Disclosing Party"), and Acme Widgets Inc ("Receiving Party").*

SECTION I

# Definitions

*Confidential Information* means any and all non-public, proprietary, or confidential information disclosed by Disclosing Party to Receiving Party, whether orally, in writing, electronically, or in any other form, including but not limited to technical data, trade secrets, know-how, research, product plans, products, services, customers, customer lists, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances, or other business information.

Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement by Receiving Party; (b) is rightfully received by Receiving Party from a third party without breach of any confidentiality obligation; (c) is independently developed by Receiving Party without use of or reference to Confidential Information; or (d) is required to be disclosed by law or court order, provided that Receiving Party gives Disclosing Party reasonable advance notice of such required disclosure.

SECTION II

## Obligations of Receiving Party

Receiving Party agrees to:

1. Hold all Confidential Information in strict confidence and not disclose it to any third party without prior written consent of Disclosing Party.
2. Use Confidential Information solely for the purpose of technical evaluation of On Spot's Apollo platform for potential integration with Acme's document workflows.
3. Limit access to Confidential Information to employees, agents, or advisors who have a legitimate need to know and who are bound by confidentiality obligations at least as restrictive as those contained herein.
4. Take reasonable precautions to prevent unauthorized disclosure of Confidential Information, using at least the same degree of care used to protect its own confidential information, but in no event less than reasonable care.
5. Return or destroy all documents, materials, and other tangible manifestations of Confidential Information upon termination of this Agreement or upon request by Disclosing Party.

SECTION III

## Permitted Disclosures

Receiving Party may disclose Confidential Information only: (a) to the extent required by applicable law, regulation, or court order, provided that Receiving Party provides Disclosing Party with prompt written notice of such requirement to permit Disclosing Party to seek a protective order; (b) to employees, consultants, and advisors who have

signed confidentiality agreements containing provisions substantially similar to those herein; or (c) with the prior written consent of Disclosing Party.

SECTION IV

## Term and Termination

This Agreement shall remain in effect for a period of three (3) years from the effective date. The obligations of Receiving Party with respect to Confidential Information received during the term of this Agreement shall survive termination of this Agreement and continue for a period of three (3) years following such termination.

SECTION V

## Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, without regard to its conflict of law principles. Any disputes arising under this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in Massachusetts.

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous understandings, agreements, negotiations, representations, and warranties, whether written or oral. This Agreement may only be amended by a written instrument signed by both parties. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

EXECUTION

# *Signatures*

DISCLOSING PARTY

On Spot Solutions LLC

SIGNATURE

DATE

RECEIVING PARTY

Acme Widgets Inc

SIGNATURE

DATE